Threshold Argument: Qualified Immunity and Private, Profit-Seeking Contractor Executives

Executive Summary

This report analyzes whether a private, profit-seeking contractor executive who operates a CDCR-contracted sex offender treatment program can invoke qualified immunity in a § 1983 damages action.
Drawing on Supreme Court and Ninth Circuit precedent, the weight of authority supports a threshold argument that such a defendant is **categorically ineligible** to assert qualified immunity, and at most may claim a limited "good faith" defense.
[1][2][3][4][^5]

Doctrinal Framework for Private Defendants and Qualified Immunity

Qualified immunity is a defense developed for **government officials** sued for damages under § 1983 or Bivens, protecting them when they do not violate clearly established law.
[2][3]
For private actors, the Supreme Court has held that liability under § 1983 does not automatically carry with it immunity; courts must separately ask whether qualified immunity is categorically available based on (1) common-law history and (2) policy rationales.
[4][1][^2]

The central Supreme Court precedents on private defendants and qualified immunity are **Wyatt v. Cole**, 504 U.S. 158 (1992), and **Richardson v. McKnight**, 521 U.S. 399 (1997), followed by **Filarsky v. Delia**, 566 U.S. 377 (2012).
[6][1][^2]
These cases collectively establish that many private actors who perform governmental functions—especially those employed by large, profit-seeking firms running major delegated functions—are not entitled to qualified immunity, even though they act under color of state law for liability purposes.
[7][1][^2]

Supreme Court Baseline: Wyatt v. Cole

Holding and Rule

In **Wyatt v. Cole**, 504 U.S. 158 (1992), the Court held that qualified immunity "as enunciated in Harlow" is **not available** to private defendants facing § 1983 liability for invoking state replevin, garnishment, or attachment statutes.
[8][2]
The Court found no firmly rooted common-law tradition of immunity for such private parties and concluded that the policy reasons for qualified immunity (deterring timidity and

protecting public decisionmaking) did not apply with comparable force to private litigants using state procedures.
[^2]

Affirmative Good-Faith Defense

Wyatt did, however, "not foreclose" the possibility that private defendants might assert an **affirmative defense based on good faith and/or probable cause**, distinct from qualified immunity.
[9][2]
Subsequent circuits, including the Ninth Circuit, have built on this dicta to recognize a good-faith defense for private parties relying on then-binding law, while maintaining the rule that such parties cannot claim full qualified immunity.
[3][10]

Relevance to Contractor Executives

Wyatt establishes the foundational principle that private parties—even when they act under color of state law by invoking state procedures—do not automatically receive qualified immunity.
[^2]
It also frames the two-step inquiry: courts must first ask whether qualified immunity is **categorically available** for a given class of private actors before analyzing clearly established law.
[10][4]
That inquiry is central to your threshold argument against a private CEO of a for-profit treatment contractor.

Supreme Court: Richardson v. McKnight

Facts and Holding

In **Richardson v. McKnight**, 521 U.S. 399 (1997), Tennessee contracted with a private, multistate, for-profit prison management company to run a state correctional center.
[11][1]
Prison guards employed by the private firm were sued under § 1983 for allegedly using excessively tight restraints; they asserted qualified immunity.
The Supreme Court held that **prison guards employed by a private firm are not entitled to qualified immunity** from § 1983 suits by prisoners.
[1][11]

Historical and Policy Analysis

The Richardson majority applied Wyatt's framework, asking whether common-law history and policy justified extending qualified immunity to this category of private actors.
[11][1]
It found:

- **No common-law tradition** of immunity for private prison contractors or their employees; historical materials showed that private jailers did not enjoy special protections.
  [12][1][^11]
- **Policy rationales against immunity**: the Court stressed that market pressures and contractual incentives can substitute for immunity by deterring overly timid or overly aggressive behavior; privatization allows firms to adjust compensation, insurance, and risk allocation without judicially created immunity.
  [13][1]

On that basis, the Court concluded there were "no special reasons" to extend governmental immunity and held that employees of a for-profit prison management firm running a "major, lengthy" governmental function are **not eligible** for qualified immunity.
[14][1]

Limiting Language and Good-Faith Possibility

Richardson explicitly noted that its holding was limited to the context at hand—a **large, for-profit, multistate private prison company** performing a major delegated function with little direct state supervision—and did not decide whether other kinds of private actors could claim qualified immunity.
[15][1]
It also left open the possibility that such parties might have a **good-faith defense**, consistent with Wyatt.
[3][1][^2]

Application to a Private Treatment Contractor CEO

The features the Court highlighted in Richardson closely match the scenario of a private, profit-seeking contractor executive running a CDCR-contracted treatment program:

- The contractor is **organized as a for-profit company** competing for state contracts, not a government department.
  [^14]
- It performs an **ongoing, major governmental function** (mandated treatment for parolees), delegated by CDCR.
  [16][7]
- There is no historical tradition of immunity for private treatment providers or their executives in this role.
  [17][7]

Richardson thus strongly supports a threshold argument that your defendant falls within the class of private, profit-seeking contractors for whom qualified immunity is **categorically unavailable**—even though his conduct may be under color of state law for § 1983 purposes.
[4][1][^3]

Supreme Court: Filarsky v. Delia and Its Limits

Facts and Holding

In **Filarsky v. Delia**, 566 U.S. 377 (2012), a private attorney was temporarily retained by a California city to conduct an internal investigation of a suspected firefighter misconduct.
[6][15]
The Ninth Circuit denied Filarsky qualified immunity solely because he was a private lawyer. The Supreme Court reversed, holding that a private contractor "temporarily retained by the government to carry out its work" could seek qualified immunity, and rejecting a categorical bar based solely on private status.
[18][6]

Historical Basis and Adjunct Role

Filarsky distinguished Richardson by pointing to a historical tradition of immunity (or similar protections) for **private individuals who sometimes served the sovereign**—for example, private lawyers and doctors who alternated between private practice and public assignments.
[15][6]
The Court emphasized:

- Such individuals were often treated like public officials when performing specific governmental functions.
  [^15]
- Denying them immunity while granting it to full-time public employees working alongside them would create perverse incentives and discourage governments from drawing on private expertise.
  [^18]

Filarsky's Test for Private Actors

Filarsky does not overrule Richardson; rather, it instructs courts to consider:

1. Whether individuals performing similar functions enjoyed immunity at common law.
2. Whether public policy favors extending immunity.
   [^18]

Qualified immunity "generally should be available" when a private party is retained by the government to serve public interests and works **alongside or under close supervision of government officials**, and historical practice or policy supports immunity.
[^18]

Why Filarsky Likely Does Not Rescue a Treatment Contractor CEO

Applied to your scenario, Filarsky is distinguishable:

- The CEO is not a temporary adjunct but rather part of a **systematically organized, profit-seeking corporation** that has taken over a major, lengthy governmental function—precisely the situation Richardson disfavors.
  [1][14]
- There is no identified common-law tradition of immunity for private corporate executives running long-term treatment programs for prisoners or parolees.
  [7][17]
- Policy concerns differ: market and contractual pressures can incentivize appropriate behavior; the state can adjust compensation, contract terms, and indemnification without judicially created immunity.
  [17][7][^1]

Thus, Filarsky undercuts a **status-based bar** on private actors but still requires courts to apply the history-and-policy test, which in your fact pattern points strongly toward **denial of qualified immunity** under Richardson.
[19][7][^18]

Ninth Circuit: Categorical Bar for Many Private Actors

Jensen v. Lane County (Private Psychiatrist)

In **Jensen v. Lane County**, 222 F.3d 570 (9th Cir. 2000), a private psychiatrist contracted with county officials to evaluate individuals brought in by police for involuntary psychiatric admission.
[20][4]
The Ninth Circuit held that:

- The psychiatrist was a **state actor** under § 1983 because his detention decision was made in joint action with county officials.
  [^4]
- **Qualified immunity was not categorically available** to him; there was no definitive common-law tradition of immunity for such private doctors, and policy considerations (including market pressures and indemnification) weighed against immunity.
  [20][4]

Jensen applied Richardson's historical and policy analysis to private medical professionals and concluded that private mental-health practitioners performing government-initiated detention decisions are **not entitled to qualified immunity**.
[^4]

Clement v. City of Glendale (Private Towing Company)

In **Clement v. City of Glendale**, 518 F.3d 1090 (9th Cir. 2008), the Ninth Circuit held that a private towing company that impounded vehicles at police direction could not assert qualified immunity because that defense is "generally not available" to private defendants in § 1983 suits.
[^21]
The court instead recognized a **good-faith** defense for the company, based on its reliance on then-valid law and police instructions.
[21][10]

Clement explicitly cites Wyatt for the proposition that private parties do not receive qualified immunity and channels them into a good-faith framework.
[10][21]

Franklin v. Fox (Private Individual)

In **Franklin v. Fox**, 312 F.3d 423 (9th Cir. 2002), the Ninth Circuit reiterated that private individuals, even when acting jointly with state officials, are not entitled to qualified immunity. The court noted: "private persons are not entitled to qualified immunity under § 1983" and instead may assert a good-faith defense.
[^5]

Ninth Circuit Section 1983 Outline

The Ninth Circuit's own Section 1983 outline summarizes this doctrine:

- "The Ninth Circuit has concluded that private individuals are not entitled to qualified immunity in either § 1983 or Bivens actions," citing **Clement**, **Franklin**, and **Conner**.
  [^3]
- It also notes that employees of a private prison management company are not entitled to qualified immunity under Richardson.
  [^3]

This institutional guidance reinforces that, in the Ninth Circuit, private actors—including contractors performing governmental functions—
are presumptively **ineligible** for qualified immunity.
[^3]

Application to Private Medical and Treatment Providers

Scholarly and judicial sources document that the Ninth Circuit has extended Richardson and Jensen's rationale to **private healthcare contractors in correctional settings**.
[22][7][^17]
For example:

- Courts applying Richardson have denied qualified immunity to private medical directors and nurses employed by for-profit medical providers contracted to run jail healthcare.
  [22][17]

- Scholarship on post-Richardson doctrine in the Ninth Circuit identifies private medical personnel working in prisons as categorically barred from asserting qualified immunity. [^7]

These authorities are directly comparable to your defendant, whose company operates mandated treatment services for parolees under contract with CDCR.
[22][7]

Good-Faith Defense vs. Qualified Immunity

Danielson v. Inslee

In **Danielson v. Inslee**, 945 F.3d 1096 (9th Cir. 2019), the Ninth Circuit held that private parties may invoke an **affirmative good-faith defense** to retrospective monetary liability under § 1983 when they acted in direct reliance on then-binding Supreme Court precedent and presumptively valid state law.
[^10]
The court emphasized that Wyatt forecloses full qualified immunity but permits good-faith defenses, and that Clement already recognized such a defense for private actors.
[23][10]

Implications for Your Case

Even if the court finds your defendant acted under color of state law, the Ninth Circuit's doctrinal path suggests:

- He **cannot claim qualified immunity** as a private, profit-seeking contractor executive. [5][4][^3]
- At most, he may argue for a **good-faith** defense, contending that he reasonably relied on CDCR directives, statutory frameworks, or prior case law. [21][10]

Given your evidence that the company's own executive testified about the blanket policy and that a state court condemned it, his ability to establish good faith is highly contestable; but doctrinally, that is a separate, narrower defense than qualified immunity.
[^7]

Circuit Split and Post-Filarsky Developments

Other Circuits on Private Medical and Correctional Contractors

Scholars and petitions to the Supreme Court describe a broad trend in which circuits—including the Sixth, Seventh, Ninth, and Eleventh—deny qualified immunity to private medical professionals employed full-time by for-profit corporations contracted to provide prison or jail services.
[24][19][^7]
These courts rely on Richardson and Jensen, finding no historical immunity and concluding

policy reasons do not justify extending immunity.
[19][7]

While some circuits have allowed qualified immunity in narrow circumstances post-Filarsky (e.g., a private physician performing executions under close state control), the prevailing approach treats **systematically organized, profit-driven contractors** as ineligible for qualified immunity.
[24][7]

Minneci v. Pollard (Bivens Context)

In **Minneci v. Pollard**, 565 U.S. 118 (2012), the Court denied a Bivens remedy against private prison employees where state tort law provided adequate alternative remedies.
[25][16]
The decision underscores that private prison employees are not shielded by qualified immunity, relying in part on Richardson's analysis and noting that market pressures and state-law remedies provide sufficient deterrence.
[26][27][^16]

Though Minneci involves federal prisoners and Bivens rather than § 1983, it confirms the broader skepticism about extending governmental immunities to private, profit-driven prison and correctional contractors.
[28][29][^16]

Strategic Use of the Threshold Argument in Your Case

Core Argument Structure

For your opposition brief, you can frame the threshold argument as follows:

1. **State-Actor Status:** Under **West v. Atkins** and similar cases, private treatment providers under contract with CDCR act under color of state law when delivering mandated services to parolees.
   [22][3]
2. **Categorical Ineligibility for Qualified Immunity:** Under **Wyatt**, **Richardson**, and Ninth Circuit applications in **Jensen**, **Clement**, and **Franklin**, privately employed individuals and contractor executives are **categorically barred** from asserting qualified immunity in § 1983 actions.
   [5][1][2][21][4][3]
3. **Filarsky Distinction:** Filarsky protects temporary, adjunct private actors (like a lawyer temporarily retained) where history and policy favor immunity; it does not extend qualified immunity to full-time executives of for-profit firms systematically organized to perform major governmental functions.
   [6][15][18][7]
4. **Alternative Good-Faith Defense:** At most, the defendant may seek an affirmative **good-faith** defense under Wyatt, Clement, and Danielson, which does not shield him from suit or from

discovery and trial on deliberate indifference and punitive damages.
[2][21][^10]

How This Interacts with Clearly-Established-Law Analysis

If the court accepts that your defendant cannot assert qualified immunity, the Emmons/al-Kidd "clearly established" inquiry becomes **irrelevant** to him; the case proceeds on the underlying constitutional merits and ordinary § 1983 standards for private actors acting under color of state law.
[1][2][^3]

Even if the court declines to adopt a categorical bar and entertains his qualified-immunity defense, the **history and policy factors** from Richardson and Jensen weigh heavily against immunity, strengthening your argument that this is not the type of private actor Filarsky protects.
[1][7][^4]

Conclusion

Supreme Court precedent—particularly Wyatt and Richardson—combined with Ninth Circuit decisions like Jensen, Clement, and Franklin, provides substantial support for a threshold argument that a private, profit-seeking contractor executive running a CDCR-contracted treatment program **cannot invoke qualified immunity** in a § 1983 damages action.
[5][21][2][4][1][3]
Instead, such a defendant is at most entitled to assert a narrower good-faith defense, which your factual record is well positioned to contest.

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